THE KARNATAKA RENT ACT, 1999

Jurisdiction: State of Karnataka (Karnataka Act No. 34 of 2001)

An Act to provide for the regulation of rent and eviction of tenants in urban areas of the State of Karnataka and for matters connected therewith.

CHAPTER I & II: PRELIMINARY & REGULATION OF RENT

Section 2 - Application of the Act:
The Act applies to residential and commercial premises in areas within the limits of Bengaluru City Corporation and all City Municipal Corporations in Karnataka.

Section 5 - Inheritability of Tenancy:
In the event of the death of a tenant, the right of tenancy shall devolve for a period of five years upon his surviving spouse, son, daughter, or parents who had been ordinarily living with the tenant at the time of death.

Section 8 - Standard Rent & Revision:
(1) The rent payable for any premises shall be the agreed rent between the landlord and the tenant.
(2) Lawful increase in rent shall not exceed standard statutory rates unless agreed improvements or repairs are made with tenant consent.

CHAPTER VI: PROTECTION OF TENANTS AGAINST EVICTION

Section 27 - Protection of Tenants Against Eviction:
(1) Notwithstanding anything to the contrary contained in any other law or contract, no order or decree for the recovery of possession of any premises shall be made by the Court in favour of the landlord against the tenant, save and except on an application made on the following specific grounds:
(a) that the tenant has neither paid nor tendered the whole of the arrears of the rent legally recoverable within two months of the date on which a notice of demand for the arrears has been served on him;
(b) that the tenant has, without the written consent of the landlord, sub-let, assigned or parted with the possession of the whole or any part of the premises;
(c) that the premises were let for use as a residence and neither the tenant nor any member of his family has been residing therein for a period of six months immediately preceding the application;
(d) that the premises are reasonably and bona fide required by the landlord for occupation by himself or any member of his family;
(e) that the tenant has caused or permitted to be caused substantial damage to the premises.

CHAPTER VIII: ESSENTIAL SERVICES & DISPUTE RESOLUTION

Section 44 - Cutting Off or Withholding Essential Supply or Service:
(1) No landlord shall, without just and sufficient cause, cut off or withhold any essential supply or service enjoyed by the tenant in respect of the premises let to him.
(2) If a landlord contravenes the provisions of sub-section (1), the tenant may make an application to the Court complaining of such contravention.
(3) If the Court is satisfied that the essential supply or service was cut off or withheld without just and sufficient cause, it shall make an order directing the landlord to restore such supply or service immediately.
(4) The Court may in its discretion direct that compensation not exceeding five thousand rupees be paid to the tenant by the landlord.